

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS****DAVID SAX,****VERIFIED COMPLAINT****Plaintiff(s),****INDEX No.****-against-****THE CITY OF NEW YORK, P.O. THOMAS COREY
(Shield No. 653), P.O. SCOTT M. WRBA (Shield No. 31458)
and LT. MING H. ZHANG (Tax No. 942839),****Defendant(s).**

David Sax ("Plaintiff"), by his attorney Michael F. Rubin, Esq. complaining of the defendants herein, respectfully shows to this Court, and alleges as follows:

THE PARTIES

1. At all times hereinafter mentioned, plaintiff David Sax (hereinafter "Sax"), was and still is a resident of the County of Queens, in the City and State of New York, and is a "person aggrieved" as that term is defined by The New York City Administrative Code § 8-801.

2. At all times relevant and material herein, the defendant City of New York hereinafter "City" was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

3. At all times relevant and material herein, Police Officer Thomas Corey (Shield No. 653) hereinafter "Corey" was an employee of the Police Department of the City of New York and is a "covered individual" as that term is defined by The New York City Administrative Code § 8-801.

4. At all times relevant and material herein, Police Officer Scott M. Wrba (Shield No. 31458) hereinafter "Wrba" was an employee of the Police Department of the City of New York and is a "covered individual" as that term is defined by The New York City Administrative Code § 8-801.

5. At all times relevant and material herein, Lt. Ming H. Zhang (Tax No. 942839) hereinafter “Zhang” was an employee of the Police Department of the City of New York and is a “covered individual” as that term is defined by The New York City Administrative Code § 8-801.

**ALLEGATIONS PERTAINING
TO ALL OF PLAINTIFF’S CLAIMS**

6. At all times relevant and material herein, the defendant City operated, maintained, managed, supervised and controlled The New York City Police Department (hereinafter “NYPD”) as part of and in conjunction with its municipal functions.

7. That at all times hereinafter mentioned and upon information and belief, the defendant City, operated, controlled and supervised the NYPD.

8. Upon information and belief, Corey, Wrba, Zhang and the other police officers involved in the detention of plaintiff were graduates of the Police Academy of the NYPD.

9. At all times relevant hereto, the defendant City had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, Corey, Wrba, Zhang and the other police officers involved to conform their conduct to a standard for the protection of individuals, such as plaintiff, against the unreasonable arrest and detention by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently deprive citizens such as plaintiff herein of their constitutional and common law rights.

10. In addition, at all times relevant hereto, the defendant City had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels Corey, Wrba, Zhang and the other police officers involved, in the protection of the rights of plaintiff under the Constitution of the United States of America and the laws of the State and City of New York, including the New York State constitution.

11. At all times hereinafter mentioned, upon information and belief, Corey, Wrba, Zhang and the other police officers involved were acting in their capacity as employees, agents and/or servants of the defendant of City of New York.

12. At all times hereinafter mentioned, Corey, Wrba, Zhang and the other police officers involved were acting under the color of State law.

13. At all times hereinafter mentioned, the defendants' acts constituted State action.

14. Subsequent to an investigation, on June 19, 2023 Corey and his fellow police officers placed plaintiff under arrest in the County of Queens, City and State of New York. Plaintiff was placed in handcuffs and was thereafter detained against his will and incarcerated until his release.

15. Plaintiff was charged with Criminal Possession of a Weapon in the Fourth Degree, a violent felony offense, and related charges.

16. Plaintiff, at the time of his arrest, due to a medical condition was, and is, unable to swallow.

17. Due to the medical condition, plaintiff could not, at the time of his arrest, feed himself or administer necessary medication without the use of a "feeding tube" that was in place on the day of arrest.

18. Upon his arrest, plaintiff requested that the arresting officers allow him to feed himself and take his medicine which they refused to do. Instead he was transported to a hospital.

19. Ultimately, on the date of arrest, plaintiff was transported to North Shore University Hospital (NSUH) in police custody solely for the purpose of feeding and administering his medicine.

20. Plaintiff was not at any time medically admitted to the hospital or in need of medical

care.

21. Plaintiff was unreasonably and unjustifiably detained at NSUH until June 24, 2023 without arraignment until plaintiff was finally released upon issuance of a desk appearance ticket, five (5) days after his arrest.

22. By reason of the foregoing acts by the defendants, plaintiff Sax was unlawfully imprisoned and falsely arrested.

23. By reason of the foregoing acts by the defendants, plaintiff was caused emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.

24. By the reason of the foregoing, plaintiff was compelled to remain incarcerated until he was released from custody.

**ALLEGATIONS PERTAINING TO PLAINTIFF'S
CLAIMS UNDER STATE LAW**

25. Before the commencement of this action, and within 90 days of June 19, 2023, a Notice of Claim containing the information required by law was duly served upon the defendant City on September 12, 2023.

26. That a hearing pursuant to New York State's General Municipal Law §50-h, was conducted on February 8, 2024.

27. More than thirty (30) days have elapsed since the claims upon which this action is based were presented to the defendant City, and said defendant has neglected and/or refused to make payment or adjustment thereof.

28. This action is commenced within one (1) year and ninety (90) days after both the accrual of the causes of action alleged in this complaint, and the happening of the incidents and acts complained of herein.

AS AND FOR A FIRST CAUSE OF ACTION
(FALSE ARREST)

29. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

30. That on or about June 19, 2023 in the County of Queens, City and State of New York, the defendants their agents, servants and/or employees arrested and detained plaintiff.

31. That from June 19, 2023 to June 24, 2023, the defendants wrongfully, unreasonably and falsely detained the plaintiff, without seeking his arraignment in a timely manner, thus falsely arresting plaintiff.

32. That the said arrest was caused by the defendants, their agents, servants and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or justification.

33. While the plaintiff was at the above location, the defendants, their agents, servants and/or employees, wrongfully and unlawfully, against the plaintiff's wish, without his consent, arrested and imprisoned the plaintiff.

34. That the plaintiff did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees, and was forced by the defendants to submit to the aforesaid arrest and imprisonment entirely against his will.

35. That as a result of the aforesaid detention made by the defendants, their agents, servants and/or employees acting under their employment within the scope of their authority, was against his will.

36. That the defendants, their agents, servants and/or employees as set forth above, on or about the above date, time and place, intended to confine the plaintiff, the plaintiff was conscious of the

confinement, the plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

37. That by reason of false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer much pain in both mind and body.

38. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorneys fees and such other relief as this court may deem just and proper.

AS AND FOR A SECOND CAUSE OF ACTION
(42 U.S.C. §1983)

39. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

40. That at the time of the commission of the acts alleged hereinabove by the police officers of the City of New York, David Sax was a citizen of the United States.

41. That the acts of defendants as above set forth above, were performed under color of law in deprivation of plaintiff's rights, privileges and immunities secured to him by the Constitution and laws of the United States of America.

42. That by reason of the foregoing, plaintiff is entitled to redress and to damages pursuant to Sec.1983, Title 42 of The Public Health and Welfare Law of the United States.

43. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower

courts, plus punitive damages, plus costs, attorney's fees and such other relief as this court may deem just and proper.

AS AND FOR A THIRD CAUSE OF ACTION
CLAIM FOR RELIEF
(NYC ADMINISTRATIVE CODE §8-801)

44. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

45. That by reason of the foregoing, the plaintiff's rights to be free from unreasonable seizure was violated.

46. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

WHEREFORE, plaintiff demands judgment against the defendants as follows:

On each claim for relief, judgment in an amount in excess of the jurisdictional limits of all lower courts, and plaintiff demands an additional sum of punitive damages against each individual defendant to be determined at the trial of this action; and in the event plaintiff is a prevailing party, attorney's fees; and interest, costs, and such other relief as to this Court shall seem just and proper.

Dated: March 19, 2024

Yours, etc.,

/s/ Michael F. Rubin

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ATTORNEY'S VERIFICATION

I, MICHAEL F. RUBIN, the undersigned, an attorney admitted to practice in the Courts of the State of New York, and say that:

I am the attorney of record for the Plaintiff in the above-entitled action. I have read the annexed Summons and Verified Complaint and know the contents thereof and the same are true, except for those matters stated to be alleged on information and belief, and as to those matters, I believe them to be true. My belief as to those matters therein not stated upon knowledge is based upon the contents of the file maintained in my offices. The reason I make this affirmation instead of Plaintiff, is that Plaintiff does not reside in the county where your affiant maintains his offices.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: March 19, 2024

A handwritten signature in blue ink, appearing to read 'Michael F. Rubin', is written over a horizontal line.

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